

House File 856

H-1094

1 Amend House File 856 as follows:

2 1. Page 1, before line 1 by inserting:

3 <DIVISION I

4 STATE ENTITIES — DIVERSITY, EQUITY, AND INCLUSION ACTIVITIES
5 PROHIBITED>

6 2. Page 3, lines 16 and 17, by striking <the same as defined
7 in section 216.2> and inserting <a gender-related identity of a
8 person, regardless of the person's assigned sex at birth>

9 3. Page 5, line 3, after <This> by inserting <division of
10 this>

11 4. Page 5, after line 4 by inserting:

12 <DIVISION ____

13 COMMUNITY COLLEGES — DIVERSITY, EQUITY, AND INCLUSION
14 ACTIVITIES PROHIBITED

15 Sec. _____. Section 261J.1, subsection 2, paragraph a, as
16 enacted by 2024 Iowa Acts, chapter 1152, section 31, is amended
17 to read as follows:

18 a. (1) An With respect to an institution of higher
19 learning governed by the state board of regents, an office
20 staffed exclusively by licensed attorneys and paralegal and
21 secretarial support for the licensed attorneys, and certified
22 by the attorney general as operating with the sole and
23 exclusive mission of ensuring legal compliance with the public
24 institution of higher education's obligations under Tit. IX of
25 the federal Education Amendments Act of 1972, 20 U.S.C. §1681
26 et seq., as amended, the federal Americans with Disabilities
27 Act of 1990, 42 U.S.C. §12101 et seq., as amended, the federal
28 Age Discrimination in Employment Act of 1967, 29 U.S.C. §621 et
29 seq., as amended, the federal Civil Rights Act of 1964, Pub.
30 L. No. 88-352, as amended, or any other applicable federal or
31 state law or a court order.

32 (2) With respect to a community college, an office ensuring
33 legal compliance.

34 Sec. _____. Section 261J.1, subsection 3, as enacted by 2024
35 Iowa Acts, chapter 1152, section 31, is amended to read as

1 follows:

2 3. *"Public institution of higher education"* means an
3 institution of higher learning governed by the state board of
4 regents or a community college.

5 Sec. _____. Section 261J.4, as enacted by 2024 Iowa Acts,
6 chapter 1152, section 34, is amended to read as follows:

7 **261J.4 Reporting.**

8 Each ~~public~~ institution of higher education governed by
9 the state board of regents shall, on or before December 1 of
10 each year, submit an annual report to the general assembly and
11 the governor that certifies the ~~public institution of higher~~
12 ~~education's~~ institution's compliance with this chapter.

13 Sec. _____. 2024 Iowa Acts, chapter 1152, section 36, is
14 amended to read as follows:

15 SEC. 36. FY 2025-2026 APPROPRIATIONS — REALLOCATION. At
16 the close of the fiscal year beginning July 1, 2025, all
17 unexpended moneys appropriated by the general assembly for the
18 fiscal year that would have been expended by an institution
19 of higher learning governed by the state board of regents on
20 diversity, equity, and inclusion offices or diversity, equity,
21 and inclusion officers on or after the effective date of this
22 division of this Act are reallocated to the Iowa workforce
23 grant and incentive program fund established pursuant to
24 section 256.230, subsection 8.

25 DIVISION _____

26 PRIVATE INSTITUTIONS OF HIGHER EDUCATION — DIVERSITY, EQUITY,
27 AND INCLUSION ACTIVITIES PROHIBITED

28 Sec. _____. Section 256.183, subsection 1, unnumbered
29 paragraph 1, Code 2025, is amended to read as follows:

30 *"Accredited private institution"* means an institution of
31 higher learning located in Iowa which is operated privately
32 and not controlled or administered by any state agency or
33 any subdivision of the state and which meets the criteria in
34 paragraphs "a" and "b" and all of the criteria in paragraphs "d"
35 through "j" "k", except that institutions defined in paragraph

1 "c" of this subsection are exempt from the requirements of
2 paragraphs "a" and "b":

3 Sec. _____. Section 256.183, subsection 1, Code 2025, is
4 amended by adding the following new paragraph:

5 NEW PARAGRAPH. k. Adopt a policy for compliance with
6 chapter 261K.

7 Sec. _____. Section 256.183, subsection 3, Code 2025, is
8 amended to read as follows:

9 3. "*Eligible institution*" means an institution of higher
10 learning located in Iowa which is operated privately and
11 not controlled or administered by any state agency or any
12 subdivision of the state, which is not exempt from taxation
13 under section 501(c)(3) of the Internal Revenue Code, and which
14 meets all of the criteria in subsection 1, paragraphs "d"
15 through "j" "k", and is a school of barbering and cosmetology
16 arts and sciences licensed under chapter 157 and is accredited
17 by a national accrediting agency recognized by the United
18 States department of education. For the fiscal year beginning
19 July 1, 2017, such a school of barbering and cosmetology arts
20 and sciences shall provide a matching aggregate amount of
21 institutional financial aid equal to at least seventy-five
22 percent of the amount received by the institution's students
23 for Iowa tuition grant assistance under section 256.191. For
24 the fiscal year beginning July 1, 2018, the school of barbering
25 and cosmetology arts and sciences shall provide a matching
26 aggregate amount of institutional financial aid equal to at
27 least eighty-five percent of the amount received in that fiscal
28 year. Commencing with the fiscal year beginning July 1, 2019,
29 and each succeeding fiscal year, the matching aggregate amount
30 of institutional financial aid shall be at least equal to the
31 match provided by eligible institutions under section 261.9,
32 subsection 3, paragraph "a", Code 2023.

33 Sec. _____. NEW SECTION. 261K.1 Definitions.

34 As used in this chapter, unless the context otherwise
35 requires:

1 1. *"Department"* means the department of education.

2 2. *"Diversity, equity, and inclusion"* includes all of the
3 following:

4 *a.* Any effort to manipulate or otherwise influence the
5 composition of the faculty or student body with reference to
6 race, sex, color, or ethnicity, apart from ensuring colorblind
7 and sex-neutral admissions and hiring in accordance with state
8 and federal antidiscrimination laws.

9 *b.* Any effort to promote differential treatment of or
10 provide special benefits to individuals on the basis of race,
11 color, or ethnicity.

12 *c.* Any effort to promote or promulgate policies and
13 procedures designed or implemented with reference to race,
14 color, or ethnicity.

15 *d.* Any effort to promote or promulgate trainings,
16 programming, or activities designed or implemented with
17 reference to race, color, ethnicity, gender identity, or sexual
18 orientation.

19 3. *"Diversity, equity, and inclusion office"* means
20 any division, office, center, or other unit of a private
21 institution of higher education that is responsible for
22 creating, developing, designing, implementing, organizing,
23 planning, or promoting policies, programming, training,
24 practices, activities, or procedures related to diversity,
25 equity, and inclusion. *"Diversity, equity, and inclusion office"*
26 does not include any of the following:

27 *a.* An office ensuring legal compliance.

28 *b.* An academic department within a private institution
29 of higher education that exists primarily for the purpose of
30 offering courses for degree credit and that does not establish
31 a policy or procedures to which other departments of the
32 private institution of higher education are subject.

33 *c.* An office solely engaged in new student recruitment.

34 *d.* A registered student organization.

35 4. *"Private institution of higher education"* means an

1 accredited private institution as defined in section 256.183 or
2 and eligible institution as defined in section 256.183.

3 Sec. _____. NEW SECTION. **261K.2 Diversity, equity, and**
4 **inclusion office prohibited.**

5 1. A private institution of higher education shall not,
6 except as otherwise provided by federal or state law or
7 accreditation standards, establish, sustain, support, or staff
8 a diversity, equity, and inclusion office.

9 2. Subsection 1 shall not be construed to cover or affect a
10 private institution of higher education's funding of any of the
11 following:

12 a. Academic course instruction.

13 b. Research or creative works by the private institution
14 of higher education's students, faculty, or other research
15 personnel, and the dissemination of such research or creative
16 works.

17 c. Activities of registered student organizations.

18 d. Arrangements for guest speakers and performers with
19 short-term engagements.

20 e. Mental or physical health services provided by licensed
21 professionals.

22 3. Subsection 1 shall not be construed as prohibiting bona
23 fide qualifications based on sex that are reasonably necessary
24 to the normal operation of private higher education.

25 Sec. _____. NEW SECTION. **261K.3 Enforcement.**

26 1. Any person may report a private institution of higher
27 education's potential violation of section 261K.2 to the
28 attorney general. The attorney general shall provide notice
29 of such report to the department and the institution within
30 fifteen days. No later than thirty days after receiving such
31 notice, the institution shall do one of the following:

32 a. Correct the violation and provide documentation of the
33 correction to the attorney general and the department.

34 b. Provide documentation to the attorney general and the
35 department demonstrating that the action of the institution

1 upon which the report was based was not a violation of section
2 261K.2.

3 2. If, upon the conclusion of the thirty-day period
4 provided in subsection 1, the institution has not complied
5 with subsection 1, paragraph "a", or provided documentation
6 under subsection 1, paragraph "b", that demonstrates to
7 the satisfaction of the attorney general that a violation
8 of section 261K.2 did not occur, the institution shall be
9 ineligible to participate in the tuition grant program under
10 chapter 256, subchapter VII, part 4, subpart B, as of the
11 next academic year beginning thereafter. If either action is
12 carried out by the institution by October 1 of an academic
13 year, eligibility shall be restored as of the next academic
14 year beginning after such action is carried out. The attorney
15 general shall notify the college student aid commission to this
16 effect.>

17 5. Title page, by striking lines 1 through 4 and inserting
18 <An Act prohibiting public entities and private educational
19 institutions from engaging in certain activities relating to
20 diversity, equity, and inclusion, creating a private cause of
21 action, and including>

22 6. By renumbering as necessary.

COLLINS of Des Moines